

Defendant points out that several of the statutes and regulations identified in the FAC postdate the alleged conduct or are cited in versions that were not in effect during the relevant period. These include Welfare and Institutions Code sections 328, 16501, subdivision (f), and 16504; Health and Safety Code section 1522; Penal Code sections 11165.7, 11165.9, and 11166; and provisions of the Department of Social Services Manual. (FAC ¶¶ 21, 57.)

Plaintiff alleges that the relevant conduct occurred beginning in approximately 1969. (FAC ¶¶ 24–25.) The issue is therefore whether the law in effect at that time imposed the specific duties Plaintiff alleges were breached, not whether those duties exist under later enacted statutes and regulations. Thus, the Court must grant the MJOP but the Court will grant Plaintiff leave to amend to allege enactments that applied at the time of the alleged injury and to plead the correlating mandatory duties in their amended pleading.

Conclusion

For the reasons analyzed above, Defendant Contra Costa County’s MJOP is **GRANTED with leave to amend.**

2. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT AGAINST DAN HARKINS**
INDIVIDUALLY AND AS RECEIVER
FILED BY: CAFIERO, DEAN
***TENTATIVE RULING**

On the Court's own motion, the hearing is continued to 9:00 a.m. on October 5, 2026.

3. 9:00 AM CASE NUMBER: C24-01318
CASE NAME: DAMIAN MCKENNA VS. HOMESITE INSURANCE COMPANY OF CALIFORNIA
MOTION TO BE RELIEVED AS COUNSEL AS TO DEF WHAT'S GOOD FOR YOUR SOUL
FILED BY:
TENTATIVE RULING:

Gerald J. Beaudoin (“Counsel”) filed a Motion to be Relieved as Counsel on August 5, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on September 14, 2026. The motion is unopposed.

Background

Counsel seeks to be relieved as attorneys for defendant What's Good for Your Soul, LLC (the “Client”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a disagreement over the handling of the case and financial arrangements with Counsel. See Declaration filed August 5, 2026, ¶12. The Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.